



Australian Government
Department of Health and Aged Care
Therapeutic Goods Administration

Mr Paul Rekaris
Email: paulrekaris@gmail.com

Dear Mr Rekaris

FREEDOM OF INFORMATION REQUEST FOI 25-0166
Request Consultation Process

1. I refer to your request dated 1 April 2025 under the *Freedom of Information Act 1982* (the FOI Act) for access to the following documents:

'Under the Freedom of Information Act 1982 (the FOI Act), I request access to the following documents:

1. Any documents from February 2021 until April 2025 (such as but not limited to emails, reports, data, evaluations, meeting minutes, briefings, and proposals) demonstrating, evidencing, or recording the implementation of the "COVID-19 Vaccine Safety Monitoring Plan" (Version 1.0, February 2021) held by the Therapeutic Goods Administration (TGA), including but not limited to:

- a) Records of the "ample documentation demonstrating compliance" with the objectives of the COVID-19 Vaccine Safety Monitoring Plan explicitly referenced by Ms. Elspeth Kay, Assistant Secretary, Pharmacovigilance Branch, in her FOI decision letter dated 27 February 2022 (Ref: D22-5201218)*
- b) Documents containing the specific outputs listed in the Plan, including:*
 - o "Criteria for COVID-19 vaccine report escalation and clinical review incorporated into the TGA's standard procedures" (as specified on page 7 of the Plan)*
 - o "Specific protocols for investigating COVID-19 AEFI reports" (as specified on page 8 of the Plan)*
 - o "Refined processes and statistical methods for analysing observed COVID-19 AEFI rates for detecting safety signals" (as specified on page 8 of the Plan)*
- c) Records showing implementation of the following specific commitments from the Plan:*
 - o Establishment of "a standing COVID-19 expert advisory committee ready to provide advice on COVID-19 vaccine safety issues" (page 9)*
 - o "Processes to enable rapid action in response to any emerging COVID-19 vaccine safety concerns" (page 10)*

2. Any briefings, reports, dashboards, or summaries (including drafts) prepared for TGA senior management, the Department Secretary, or the Minister that document or evaluate the implementation or effectiveness of the COVID-19 Vaccine Safety Monitoring Plan between February 2021 and April 2025.'

Decision Maker

2. I am the Therapeutic Goods Administration (TGA) officer authorised to make a decision on your request under the FOI Act.

Requirement to undertake a request consultation process

3. Before deciding on the outcome of your request, I have decided to undertake a request consultation process in accordance with section 24AB of the FOI Act and provide you with the opportunity to refine the scope of your request.
4. For the reasons outlined in this letter, I am satisfied that, because of the number of documents involved in your request, the number of third parties that would need to be consulted, and the number of hours involved in considering exemptions and making a decision on the documents as set out above, your request would substantially and unreasonably divert staff in regulatory areas of the TGA who would be required to review and consider the documents and any submissions provided by third parties on the documents, from the performance of their day-to-day functions.
5. The TGA has now undertaken a preliminary search and retrieval for documents coming within the scope of your request. As a result, TGA officers have indicated that there are in excess of 399 relevant documents that would have to be processed for your request to be finalised.
6. Under paragraph 24(1)(a) of the FOI Act, I as a decision maker must consult you if I am satisfied that a “practical refusal reason” exists in relation to your request. A practical refusal reason exists if the work involved in processing the request would substantially and unreasonably divert the resources of the TGA from its other operations.
7. A copy of the sections of the FOI Act that set out the consultation process (sections 24, 24AA and 24AB) is at **Attachment A**.
8. In deciding whether the processing of your request would involve a substantial and unreasonable diversion of resources such that a practical refusal reason exists, I am required under subsection 24AA(2) of the FOI Act to consider the resources that would have to be used in the following activities:
 - identifying, locating and collating the documents;
 - deciding whether to grant or refuse access to each document and/or to provide an edited copy which would include examining each document and consulting with any person (including those that I would be required to consult under the FOI Act);
 - making a copy or edited copy of each document; and
 - notifying any interim or final decision on the request (including to any third party consulted in the event that a decision is made to give access to the document).
9. In coming to a view that a practical refusal reason exists in relation to your request, I have had regard to the following:
 - the correspondence from you dated 1 April 2025, including the terms of the FOI request;
 - the estimated volume of documents within scope of your request and the work involved in processing them. Namely, preliminary estimates from the relevant line areas of the TGA identified more than 399 documents containing 3,926 pages in relation to your request.
 - there are other areas where searches have not been completed which are likely to hold additional relevant documents and therefore the total number of relevant documents is likely to be higher than the estimate;
 - the need to prepare a schedule detailing all relevant documents;
 - that each of the documents may contain business and/or personal information, in relation to which, consideration would need to be given about whether an exemption should be claimed and whether consultation with third parties is required, and, if so, preparation of schedules for the third party detailing all relevant documents;

- the number of affected third parties that would need to be consulted, as there are at least 10 third parties. As you would appreciate, the TGA would need to write to each third party individually, attach copies of their documents, and consider the responses provided and any requested redactions. I would then need to make a decision on these documents taking these submissions into account. Also, if any of the third parties objected to release of documents and I disagreed with them, then I would need to provide them with a decision;
 - the assumption that a substantial number of those documents may be capable of being made available (even if in edited form with exempt material redacted), the time taken to appropriately edit each document and to make copies;
 - that any decision letter would need to list each document in an attachment setting out the outcome of the consideration of whether exemptions apply; and
 - the need to prepare at least 10 third-party decision letters and associated schedules, should any third parties object to the proposed release of their information.
10. Considering these matters, I have prepared an estimate of the time required to process your request. For that purpose, I have:
- considered the time required to undertake the consultation process with the 10 potential third parties;
 - considered the time already taken to perform searches for potentially relevant documents and the additional time required to complete the remaining searches;
 - estimated how long it might take to process 399 documents containing approximately 3,926 pages.
11. The estimate of charges calculator indicates that the processing of this request could take at least 180 hours. I consider that the number of documents and the number of pages estimated to fall within the scope of your request, combined with the number of third parties requiring consultation and the necessary consequential work associated with considering whether the documents may be lawfully disclosed would have a substantial effect on the operations of the TGA.
12. I also find, for the following reasons, that the work involved in processing this request would be an unreasonable diversion of the TGA's resources. Processing your request would also engage the resources of the administrative team providing critical support to the TGA's pharmacovigilance activities and the FOI team. These teams would otherwise be supporting the broader operations of the TGA's Pharmacovigilance Branch and processing other FOI requests. In this regard, the FOI Guidelines states that a relevant matter in deciding a practical refusal reason exists is "the impact that processing a request may have on other work in the agency or minister's office, including FOI processing (see paragraph 3.117 of the FOI Guidelines).
13. The time to review the 399 documents in detail to determine whether any of the documents or parts of the documents could be characterised as exempt, and then redacting the material, would be a substantial and unreasonable diversion of the TGA's resources.
14. I also note that there are likely to be significant charges imposed on you for processing your request (as calculated in accordance with the *Schedule to the Freedom of Information (Charges) Regulations 2019*) based on the number of documents, pages and third parties.
15. I find that the balance of interests does not favour the expenditure of considerable resources by the TGA. I am satisfied that the diversion of resources to provide documents in response to your request is not reasonable.

Guidance on accessing the TGA's publicly available information

16. [Advisory Committee on Vaccines \(ACV\) | Therapeutic Goods Administration \(TGA\)](#)
17. [COVID-19 vaccine safety reports | Therapeutic Goods Administration \(TGA\)](#)

Notification of request consultation process

18. As outlined above, I have decided to undertake a request consultation process in accordance with section 24AB of the FOI Act and provide you with the opportunity to refine the scope of your request.
19. Accordingly, you are now afforded fourteen (14) calendar days from your receipt of this letter in which to contact the TGA to discuss a revision of the scope of your request. The processing time for your request has been set aside to allow for the request consultation period.
20. Before the end of the 14-day consultation period, you must do one of the following:
 - withdraw your request;
 - make a revised request; or
 - indicate that you do not wish to revise your request.
21. You may wish to consider the following suggestions/comments in considering a revision to the scope of your request. Please note that these are suggestions only and do not guarantee the practical refusal reason will no longer exist. Further searches will be required upon revision of the scope:
 - In the scope of your request you seek access to *"Any documents ...not limited to emails, reports, data, evaluations, meeting minutes, briefings, and proposals) demonstrating, evidencing, or recording the implementation of the "COVID-19 Vaccine Safety Monitoring Plan".* Requesting 'any documents' in relation to any specific topic often encapsulates a vast array of documents which is the case here. Suggest limiting the scope of the request to a specific document or type of documents, eg. only seeking access to process documents, meeting minutes or briefings.
 - Items 1 b) and c) are written in a more concise format and allow TGA to identify specific documents. These points may be manageable pending further searches. Please consider a more concise format for Item 1 a) as I note that this point remains very broad.
 - Significantly reducing the overall timeframe for the request. Requests covering several years often capture a large volume of documents.
22. Should you require further time to consider submitting a revised scope, you are welcome to request an extension to the consultation period in writing to the TGA, in accordance with subsection 24AB(5) of the FOI Act.
23. If you have not contacted the TGA within 14 days of receiving this letter to do one of the above or consulted the TGA to discuss revising your scope, your request is taken to have been withdrawn.
24. If you wish to refine the scope of your request, you may contact the FOI team on (02) 6289 4630 or at TGAFOI@health.gov.au.
25. Please note that if you indicate that you do not wish to revise your request or revise your request in such a way that I am still of the view that processing it would substantially and unreasonably divert TGA resources from other operations, I may refuse your request under paragraph 24(1)(b) of the FOI Act.

Yours sincerely

Freedom of Information team
Legislation, Advice and FOI Branch
Regulatory Legal Services Division
Therapeutic Goods Administration
24 April 2025